

STATE OF NEW YORK

3610--A

Cal. No. 1269

2025-2026 Regular Sessions

IN SENATE

January 29, 2025

Introduced by Sens. HELMING, BORRELLO, BROUK, GALLIVAN, MAY, OBERACKER, O'MARA, ORTT, PALUMBO, STEC, TEDISCO, WALCZYK, WEBB -- read twice and ordered printed, and when printed to be committed to the Committee on Mental Health -- reported favorably from said committee, ordered to first and second report, amended on second report, ordered to a third reading, and to be reprinted as amended, retaining its place in the order of third reading

AN ACT to amend the mental hygiene law, in relation to establishing the rural suicide prevention council; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The mental hygiene law is amended by adding a new section 7.49 to read as follows:

§ 7.49 Rural suicide prevention council.

(a) There shall be established by the office, a council on rural suicide prevention. Members of the council shall include the commissioner or the commissioner's designee, the commissioner of health or the commissioner's designee, and the commissioner of agriculture and markets or the commissioner's designee. There shall be twelve additional members of the council including four members appointed by the governor; three members shall be appointed by the speaker of the assembly; three members shall be appointed by the temporary president of the senate; one member shall be appointed by the minority leader of the assembly; and one member shall be appointed by the minority leader of the senate.

(b) The commissioner shall designate the chair from appointed council members. Vacancies in the membership of such council shall be filled by the appropriate appointing authority.

(c) The membership of the council may include, but not be limited to, representatives of the state conference of local mental hygiene directors; mental health professionals and practitioners with experience in

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 the delivery of mental health treatment or suicide prevention services
2 in rural areas; persons with expertise in research of public health
3 issues in rural areas; any group, association, or university with exper-
4 tise in financial or economic analysis, business planning, and providing
5 supports for farmers and other individuals residing in a rural area;
6 certified peers; rural community members with lived experience who have
7 been or are currently receiving mental health services or supports; and
8 others whose professional expertise includes rural affairs related to
9 the duties of the council. For the purposes of this section the term
10 rural areas shall have the same meaning as it is defined in section four
11 hundred eighty-one of the executive law.

12 (d) Duties of the council shall include, but not be limited to:

13 (1) identifying barriers to mental health and substance use treatment
14 and prevention services, as well as the causes and conditions related to
15 death by suicide or suicide attempts in rural parts of the state;

16 (2) determine if there is sufficient capacity for peer supports and
17 mental health crisis services;

18 (3) assess the use of the 988 suicide and crisis lifeline in rural
19 areas of the state and identify strategies to increase utilization;

20 (4) identifying vulnerable populations in rural areas and the preva-
21 lence of suicide among such populations including, but not limited to,
22 farmers and agricultural workers;

23 (5) identifying policies, practices, resources, services, and poten-
24 tial legislation that aim to reduce death by suicide and suicide
25 attempts and acknowledge the demographic and cultural differences in
26 rural communities;

27 (6) offering recommendations on policies and procedures to improve the
28 coordination of services and resources among agencies involved in the
29 delivery of mental health, substance use, or suicide prevention
30 services; and

31 (7) making recommendations on funding initiatives to increase access
32 to mental health, substance use, and suicide prevention services in
33 rural areas and facilitate the use of innovative intervention strategies
34 specific to individuals residing in rural areas.

35 (e) The rural suicide prevention council shall meet not less than
36 three times annually, or as deemed necessary by the chair of the council
37 or the commissioner.

38 (f) The members of the rural suicide prevention council shall receive
39 no compensation for their services but shall be allowed their actual and
40 necessary expenses incurred in the performance of their duties.

41 The council shall provide a preliminary report to the governor and the
42 legislature of its findings, conclusions, recommendations and activities
43 already undertaken by the council, not later than nine months after the
44 effective date of this section, and a final report of its findings,
45 conclusions, recommendations and activities already undertaken by the
46 council, not later than eighteen months after the effective date of this
47 section and shall submit with its reports legislative proposals as it
48 deems necessary to implement its recommendations.

49 § 2. This act shall take effect on the sixtieth day after it shall
50 have become a law and shall expire 2 years after such effective date
51 when upon such date the provisions of this act shall be deemed repealed.